

Chandrapal v. U.P. Power Corporation

High Court of Judicature at Allahabad · Division Bench · 28 April 2010 · Writ-C No. 23342 of 2010 · **Writ disposed; petitioner relegated to clause 6.15 remedy.**

HEADNOTE

A writ challenging the amount shown in an electricity bill was disposed without examining the bill. The Division Bench accepted that clause 6.15 of the U.P. Electricity Supply Code, 2005, governed the dispute and left the consumer to pursue that Code remedy.

FACTUAL SUMMARY

Chandrapal filed a writ petition in the Allahabad High Court challenging the amount mentioned in his electricity bill. Counsel for U.P. Power Corporation submitted that the U.P. Electricity Supply Code, 2005, paragraph 6.15, governed such a challenge. The Division Bench heard both sides and did not go into the correctness of the billed amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.15

bill-amount challenge relegated to Code remedy

HOLDING

Where the consumer challenges the amount shown in an electricity bill, the High Court will not examine the bill on writ and will leave the petitioner to pursue the remedy available under clause 6.15 of the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG Order treats para 6.15 as the consumer's bill-dispute remedy; catalog maps 6.15 to the two-year recovery bar.

PRINCIPLE TAGS

clause-6.15-two-year-bar-mandatory-licensee-duty-to-act A writ challenging the amount shown in an electricity bill was disposed without examining the bill. The Division Bench accepted that clause 6.15 of the U.P. Electricity Supply Code, 2005, governed the dispute and left the consumer to pursue that Code remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OR RECOVERABILITY OF THE BILLED AMOUNT

Writ not examined on merits; petitioner directed to the Supply Code remedy. ¶ 1